MACHINE TRANSCRIPT · CORAGGIO CONSULTING

Virginia Board of Education, Business Meeting, Thursday, September 23, 2021

Date	Thursday, September 23, 2021
Place	Virginia Board of Education (Virginia Department of Education), Richmond, Virginia
Length	2h 31m (video)

- Official meeting video (VDOE, YouTube): https://www.youtube.com/watch?v=GK4Pl0tXctw
- Board of Education meetings, agendas and minutes (VDOE): https://www.doe.virginia.gov/state-board-data-funding/virginia-board-of-education

> Machine transcript (speech-to-text) produced by Coraggio Consulting. Not an official county record. Names and numbers may be misspelled; check the video at the timestamp before quoting.

Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-24. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:02:11] everybody. Nice to be here in person and masked. Thank you all so much. Welcome to the Virginia Board of Education meeting. You know, as I like to call us, the hardest working board in the Commonwealth. You know, I'm sorry in a way that y'all weren't here yesterday, because yesterday was a fairly good work session for the board, talking about the long term. You know, I find lately that in the education community, we get distracted very much by short-term things, and And sometimes the long-term plans get put by the side as we try to deal with the day-to-day.

[00:02:48] But, you know, the purpose of the board is to deal with long-term education policy. And, you know, a lot of what you'll see today is, you know, geared around that. We will begin with a moment of silence followed by the Pledge of Allegiance.

[00:03:02] OK, you know, for the board, this is one of our favorite days of the year because we have with us the aspiring Special Education Leaders Academy.

[00:03:51] We very much appreciate y'all being here, and, you know, just the quick rundown is the Special Education Leadership Initiative, established in 2008, assists school divisions and state-operated programs with succession planning and was designed to help prepare potential leaders for administrative positions

in special education, and now boasts of academy members serving in leadership positions in all eight superintendents' regions, as well as the VDOE.

[00:04:20] Through a year-long program, cohort members are provided opportunities to gain knowledge and skills that will help them to excel in positions of special education leadership. This year's cohort features staff from across the Commonwealth who work every day to ensure that our students are successful.

[00:04:37] Doug Cox, I should say, welcome. As always, I had a chance at about 8.30 to talk with the group, which I appreciate a lot, found out where you all are from. We all understand how important the work you do is. And so, you know, thank you for what you're doing.

[00:04:54] And as always, Doug, if you'd like to say a few words, you are most welcome to. I've never been able to turn down that opportunity. I've got to tell you, the same three-minute time limit as we have for public speaking. I can handle that.

[00:05:10] I can handle that. No, thank you very much for having us. It is an honor to be here. And certainly, the visit with you each year is one of the signature events of our program. It's just a pleasure for me to introduce you to cohort 14, 14 years now, and we will be together every month between now and this coming August.

[00:05:36] 22 aspiring leaders were selected out of a pool of over 50 applicants, and we've got a strong group. I say every year, the future of special ed in Virginia is in good hands, and I really do mean that.

[00:05:56] So again, just thank you so much for having us and we look forward to witnessing policymakers in action today. And we appreciate all of you do, by the way, as well. So thank you, Dr. Lane. It's good to see you again this morning too.

[00:06:12] Thank you. - Yeah, I'd also be remiss if I didn't tell y'all how happy I am that the entire board actually is here in person. It seems to have been a long time coming. All right, I hope board members had a chance to review the minutes from the July 21 and 22 meetings. If so, is there a motion either to adopt them as written or to adopt with amendments? President Gecker, I move that we adopt the minutes as presented in our agenda. Great. Is there a second? Second. Thank you,

[00:06:51] Dr. Duran. All those in favor? Aye. Aye. Any opposed? Awesome. Dr. Duran. Thank you. Good Good morning, everyone. It's a pleasure this morning to share our appreciation and recognition of Hispanic Heritage Month.

[00:07:08] And so I'm going to read our resolution first in Spanish. Actually, Dr. Drona, if you don't mind, I'm on Duolingo Day 787. Okay. So if you could keep your Spanish as slow as possible, I would certainly appreciate it. It's very difficult, but I'll do my best.

[00:07:24] So I'm going to begin with our resolution in Spanish, and I'll follow up with the resolution in English. La Junta de Educación de Virginia se une en la celebración del Mes Nacional de la Gerencia Hispana del 15 de septiembre al 15 de octubre para celebrar y honorar las contemplaciones de la cultura y la gerencia de los hispanos y los latinos nacidos en el país y también los inmigrantes en Virginia.

[00:07:47] La Junta de Educación de Virginia reconoce que más de 200,000 jóvenes hispanos y latinos asisten a las escuelas públicas de Virginia y en el Commonwealth, y por lo tanto, está comprometida a

apoyar las aspiraciones de estos estudiantes en su viaje para lograr el éxito académico y construir conexiones con otros, como un responsable receptivo sirioano.

[00:08:14] La Junta de Educación de Virginia reconoce que el tejido cultural de Virginia es de riso y es muy importante apreciar la historia hispana y latina y celebrar los logros y la cultura como una de las mayores fortalezas del Commonwealth.

[00:08:30] And there are people like Fernando Bolívar, who is the sovereign of Simone Bolívar. And he attended the University of Virginia as his second international student in the year 18-27. And he was recognized by the university as an early example of the strong and historical ties between the university and Latin America.

[00:08:55] También Silvia Méndez. Ella, demandante de nueve años en el caso de Méndez v. Westminster en el año 1947, y demandada después de ser rechazada de una escuela pública solo por blancos en California, y lo que resultó en una decisión del corte que declaraba ilegal la segregación escolar.

[00:09:19] Y también eso fue inspirado a Thurgood Marshall a usar esta decisión como presidente cuando argumentó Brown contra la Junta de Educación en el 1954 frente al Corte Suprema de los Estados Unidos. También Michelle Zahour, quien emigró a los estudiantes a los Estados Unidos a principios de la década del 1960 y finalmente estableció un restaurante local aquí en el lado sur de Richmond.

[00:09:50] que pronto se contribuirá a un sistema de apoyo para la comunidad hispana. Y su pasión y su compromiso con la comunidad lo llevaron al establecimiento de múltiples programas educativas, así como al nacimiento de la Fundación y Cámara Hispana de Virginia.

[00:10:08] Y la última, la elección de Elizabeth Guzmán y Jala Ayala, las dos primeras mujeres hispanas delegadas para la Cámara de Delgados de Virginia. También donde está el delgado Alfonso López y el delgado Jason Villares para tener un número record de representantes hispanos en la Assembla General de Virginia.

[00:10:27] La Junta de Educación de Virginia reconoce que las contribuciones de los hispanos y los latinos de Virginia a través del edilasco, el servicio militar, la educación, la atención médica, los negocios, la ciencia y la tecnología, las artes y el entrenamiento son fundamentales para construir una Commonwealth más fuerte y sostenible para todos.

[00:10:53] Now, therefore, it is resolved to the Virginia Junta de Educación that recognizes the 15th of September to October 12th of this year as the "Mes de Patrimonio Español" and allows the schools to recognize the achievements and contributions of the Spanish and Spanish here this month and throughout the year.

[00:11:18] Adoptado in Richmond, Virginia, el veguisimo tercer del día de septiembre del año de este año. Whereas the Virginia Board of Education joins Americans and Virginians in observing National Hispanic Heritage Month, which is September 15th to October 15th, we celebrate and honor the contributions, the culture and heritage of our native-born and our immigrant Hispanic and Latinos in Virginia.

[00:11:44] The Virginia Board of Education is recognizing today that over 200,000 of our Hispanic and Latino youth attend virginia public schools in the commonwealth and we as a board are committed to supporting the aspirations of these students on their journey to achieve academic success and build those connections that are needed with others as responsible and responsive citizens and we as the virginia

board of education recognize that the cultural fabric of virginia is diverse and it is important that we celebrate and appreciate the complexities of the hispanic and latino history of our commonwealth and celebrate the achievements and culture as one

[00:12:19] of the commonwealth's greatest strengths and there are some individuals that we recognize fernando bolivar who was the nephew of simon bolivar he attended the university of virginia as its second international student in 1827 and he's recognized by the university as an early exemplar of strong and historic ties between the university and latin america silvia mendez who was a nine-year-old plaintiff in the case mendez versus westminster in 1947 and this was a case that was about a wipes only public school in california this resulted in a decision from the ninth u.s circuit court of appeals which ultimately led to an inspiration for thurgood marshall using this as a foundation for

[00:12:59] brown versus the board of education in 1954. and then we have michelle zahur who immigrated to the united states in the early 60s and eventually established a local restaurant in the south side of richmond that has become a popular and very popular support system for the hispanic community and his commitment to the community has led to the establishment of multiple educational programs as well as the birth of the virginia hispanic chamber and foundation and then of course the election of elizabeth guzman hala ayala who are the first two hispanic women elected to the virginia house of delegates and they are there joined by delegate alfonso lopez and delegate jason miares and that's first time we have a record number of hispanic representatives

[00:13:38] in the virginia general assembly so with all of that the virginia board of education through this resolution recognizes the contributions of our hispanic and our latino virginians through their leadership, their military service, their education, health care, business, science, technology, arts, and entertainment. And we recognize that those are critical to building a stronger and more sustainable commonwealth for all of our citizens. So through this resolution, therefore be it resolved that the Virginia Board of Education recognizes September 15th to October 15th, 2021 as Hispanic Heritage Month. And we as a board encourage all of our Virginia schools to recognize

[00:14:18] the achievement and contributions of Hispanic and Latinos this month and throughout the year. This will be adopted in Richmond, Virginia, the 23rd day of September in the year of 2021. Thank you, Mr. President. Thank you, Dr. Duran. Is there a motion to adopt that resolution?

[00:14:38] Thank you. There's a second. Thank you, Dr. Wilson. All in favor? Aye. Any opposed? Thank you very much for the resolution. Was that slow enough or you were? I'm hoping day 788 is better. I think you had a few words here and there.

[00:14:57] - Okay, public comment. We have two people who have signed up and of course we'll open the floor after this. Carolyn Murphy, please come on up. As mentioned for public comment, comments are limited to three minutes.

[00:15:20] The board typically does not respond to comments at the meeting, however, members of staff will respond following your comments. - Am I supposed to keep the mask on? - That is up to you over there. - You can-- - I will, maybe I'll just have a little, okay.

[00:15:37] My name is Carolyn Murphy. I'd like to just give prayers for COVID. My background is I come from generations in education, including a president. And I'm the first to put on public record that the grade three math was never field tested before removing the back button.

[00:15:55] I'm also the writer and finding educational writer, although some people have kept it quiet behind a double software item to do with Pearson math software and advantage learning software. It warms my heart. It has resulted in a 400K amendment not being passed and a $1 million credit on the Secretary of Ed's budget as of February, 2020.

[00:16:17] I've also been a person that has noted some higher level formats that adults have looked at for younger students, including the QuantQ. I consider myself sort of the band public record and maybe my AKA name is citations. I believe there's a serious challenge with the grades 3 through 8 math testing.

[00:16:37] There's the only reason for the computer adaptive test. It's actually not fully a computer adaptive software. It's a summative software that has a computer adaptive part. It has tables. It has select all that apply with more than four questions.

[00:16:53] And I believe actually there should be a recall on that software. The only reason that students cannot go back is someone has programmed the software to grade it by question one. I have consulted multiple states, including the state of California, and agrees that computer adaptive software can have the back button.

[00:17:14] And I actually have consulted, I have colleagues at MIT. I believe there's an agenda to fast track math, it's one style of competition. And I do want to thank that people should know that the MAS software is from 7-Eleven year lottery tickets.

[00:17:31] It's mostly lottery funded. A key part to share is they said the software was modeled on an algebra diagnostic. Diagnostics traditionally do not have a back button. Now the algebra diagnostic was around since about 2003.

[00:17:46] Vantage Learning came out with a tech report in 2004 that says you have a DOT tool that allows students to check their work. They said it was modeled on the Algebra Diagnostic. That tech report is in public record, the tech report from Vantage in 2004, tech report from Pearson for certifications, as well as Smarter Balanced in California has come forward of taking it out of state, gotten more information of models to share that.

[00:18:11] California shares you can have the back button. As well as, I should say, they said the military was in behind it. What turned out initially, they looked at the ASVAB CAT, which had two sections. students came to me initially they didn't follow army rules i'm one of the writers behind making sure there was the math and the math word problems i had a high level contact with dodea dodea was never consulted even though they served the target population the sol innovation committee was actually disbanded in 2019 before covet while i am it breaks my heart what's happening the math

[00:18:46] issue is not just covet um i believe the other pieces there's been memos coming out high school students came to me this summer and said select all that apply more than four choices you can't have partial credit i've consulted california the california testing evaluation administrator was so concerned i said i was getting it to community committees he gave me the partial credit structure from elementary through high school you don't do that to kids you don't do that to kids when you're in covet they're under 18 and under i want to thank california shout out california

[00:19:22] for giving the partial credit model um i also wanted to share that this summer i believe i was the first person to tell a key writer the american rescue plan that the sol testing committee was disbanded i was just sharing my advocacy she didn't know okay next part is uh one of the key writers for the computer

adaptive that came out and said you needed to remove the back button she's part of the double acceleration program she hung up the phone before covid she's not hanging up now because federal money is now part of it i believe virginia has a lot of uh data with uh

[00:19:57] investments going with quality technology services some people high up in tech are aware that they're grading it by question one and if your data centers can get the right data students deserve all the online tools thank you thank you very much dr lane would you i think the board would like to know more about this would you follow up and uh transmit to the entire board on

[00:20:20] this sure thank you uh amy akers good morning good morning um i'm amy akers i serve on the board of the virginia ascd and i'm here today to speak briefly on two agenda items both related to performance assessment we applaud videoe's efforts to replace lower level multiple choice tests with inquiry-based performance assessments in history and social science this is not easy work but so

[00:20:58] important to bring some needed balance into the assessment system and to provide data and student competencies in the five c's we know the work in this area is unfinished and that quality implementation takes time and we are offering support on our end including multiple professional development opportunities as well as micro credentialing for teachers in performance assessment and rubric design we support the changes in the guidance you're considering this morning in agenda item d which would allow the use of performance assessments in credit bearing high school courses implementing performance assessments in the earlier grades and then reverting to

[00:21:33] traditional sols in high school when stakes are higher and course credit really counts sends the wrong message about skills and competencies we value most vascd will encourage schools to exercise a performance assessment option and will do whatever we can to support successful implementation we hope that the doe staff will tap into the outstanding work that several consortia of school divisions as well as professional associations have done over the past five years in order to build a bank of performance assessments that meet the DOE's quality criteria and align with the

[00:22:10] state's common rubric. We understand the legislation requires board-developed performance assessments, but we would argue that language doesn't preclude DOE using and building upon quality work that's been done in the field. The second agenda item of interest to VASED is item H, which relates to the school divisions of innovation. You'll notice that some of the school divisions have requested flexibility in order to increase their school divisions requested flexibility in order to increase their use of performance assessment having advocated for the original legislation that established school divisions of innovation we know that the intent was not just to allow

[00:22:48] flexibility in these divisions but to use them as laboratories for testing evidence-based practices that could be supported and replicated we ask that you not only approve these requests for flexibility but that you seek feedback from these divisions particularly around their use performance assessment so they can inform future work in this area lastly i've brought you copies of vascd's profile of virginia classroom which includes a foundation document and five briefs describing the types of classrooms in which students are most likely to achieve profile of a graduate goals i've shared these documents before but like to do so periodically to remind you they exist

[00:23:26] and to ensure the newer board members have them thank you thank you okay that exhausts the list of those who signed up. Is there anybody here who would like to give public comment to the board? Not a single aspiring leader. All right. Closed public comment. On to the consent agenda.

[00:24:00] Is there a desire to pull any of these items, A, B, or C, or is there a motion to adopt the consent agenda as drafted? Motion to approve. Thank you. Is there a second? Second. Any discussion? Seeing none, all in favor, signify by saying aye.

[00:24:17] Aye. Okay, any opposed? The consent agenda passes. Item D, final review of proposed revisions to the guidelines for locally awarded verified credits contained in the guidance document governing certain provisions of the regulations establishing standards for accrediting public schools in Virginia to allow for the use of performance assessments to verify credits in history and social science.

[00:24:41] Mr. Bolling? It's a mouthful of a title, isn't it? It is. I'm going to say we're going to start limiting titles to, you know, 50 characters or less. Good morning, everyone. Good morning, President Gecker, Dr. Lane, Dr. Wilson and members of the board. Today, Ms. Shelley, Loving Ryder and I bring to you the proposed revisions to the standards of accreditation guidance document to allow for the use of performance, excuse me, assessments to verify credits in history and social science. The proposed changes to the guidance document addresses the language included in the 2020 and 2021 General Assembly Appropriations

[00:25:18] Act that adds successful completion of assessments that include state-developed performance tasks scored locally in accordance with board guidelines using state-developed rubrics as an option for earning verified credit in history and social science. These amendments to the SOA guidance document provide guidance for school divisions that exercise the option of the state-developed performance tasks in conjunction with other local assessments to determine if the student has earned a locally awarded verified credit in history and social science superintendent of public

[00:25:55] instruction recommends that the board adopt the proposed revisions to the entire title which is guidance document governing certain provisions for the regulations establishing standards for accrediting public schools in virginia 8 vac 20 131 110 standard and verified units of credit locally awarded verified credit to allow for the use of performance assessments to verify credits in history and social science in response to the 2020-2021 Virginia General Assembly's Appropriation Act. At this time, Ms. Shelley Loving-Rider and I are happy to receive any questions you have regarding the proposed changes.

[00:26:32] Are there any questions by board members? Dr. Duran? No questions. Just a comment. I want to thank you for this work. I'm really excited to see that we are continuing to delve into what i know we've been talking about as a board that's an innovation committee many years ago around the use of performance assessments to really find a way to capture what our students are learning and it's a way that i think that we can do more of i know that we'd love to do more and i really appreciative of all the efforts that we're doing and excited that we will be adopting these proposed revisions to the guidelines

[00:27:10] to move us in that direction so thank you and thank all the staff i know many staff have been working on this uh it's it's a great great next step and virginia around assessment so thank you anybody else yes okay yes no okay it's i don't know if it's the mass or you know just the fog on my glasses with the mask it makes it very difficult to run this meeting thanks to both of you uh for the work uh miss loving ryan i did not mean to slight you when at the introductions i didn't see you coming up no problem i do need to get uh you know glasses that don't fog

[00:27:50] okay oh we need to vote on this is there a motion then to uh do what we've been asked to do which is approve this as drafted so moved thank you dr duran is there a second second uh-oh that was

tougher thank you all right all in favor aye any opposed that carries thank you item e first review of approved training programs for the treatment of students with a seizure disorder. Dr. Hollins.

[00:28:21] Good morning. It's lovely to be with you again so quickly. Good morning, President Gecko, Vice President Wilson, members of the board, and Dr. Lane. I'd like to present for your first review documentation to ensure that the board and the Virginia Department of Education is ensuring compliance with legislation passed during the 2021 General Assembly concerning regarding approved training for seizure management in public schools in 2021 the general assembly passed senate bill 1322 that addresses seizure management and training of school personnel

[00:28:56] for students with a known seizure disorder local school divisions are required to perform biennial training for staff including school nurses on the treatment of students with seizure disorders additionally this bill required that the board approved training program be fully consistent with training and guidelines developed by the Epilepsy Foundation of America and any successor organization. The good news is that for the past several years the VDOE has identified and promoted the Epilepsy Foundation of America's free training for school personnel. And so this legislation formalizes the recommendation of training programs that have been in place for several years to

[00:29:31] support school nurses and school staff in the recognition and response for students with seizure disorders. As I stated, the training is required to be completed by school nurses and school personnel on a biennial basis, and the Superintendent of Public Instruction recommends that the Board of Education receive for first review the approved training programs for the treatment of students with a seizure disorder.

[00:29:52] Thank you, Dr. Hollins. Are there any questions by board members at this time or comments? I don't see any, and so we will take this on first review. Thank you so much. Great. Thank you so much, President Gecker.

[00:30:08] For item F, I also bring to you information that is updated from the General Assembly Session happening in 2021. This is also a reminder. We presented previously to the board on the Joint Legislative Audit and Review Commission Study of Public Education in K-12.

[00:30:24] If you remember, we brought that to you in January and April, respectively. And so this package contains edits and updates to the regulations governing special education programs for children with disabilities in Virginia, or as we lovingly refer to them, our public school special education regs.

[00:30:40] These legislative items sourced both recent monitoring as a part of the U.S. Department education's differentiated monitoring that was performed in the commonwealth in may of 2019 as well as the recommendations from jlark that dr lane and the department committed to addressing that were also seen as part of legislative work during the 2021 session the updates that you'll see for the package today contain three main areas the first concerns house bill 2299 and senate bill 1288 that requires the department of education and the board to develop new policies and procedures regarding the inclusion of a provision requiring that if a school division

[00:31:17] develops a draft individualized education program or IEP prior to a scheduled meeting, it shall provide such draft to the parents at least two business days in advance of such IEP meeting. Previously, this has been an informal guidance from the U.S. Department of Education.

[00:31:32] So this information is consistent with what school divisions have heard. This simply puts it in as a formalized recommendation. You can imagine that for many of these meetings, draft IEPs are developed in order to help a meeting go smoothly to identify areas that may have already been addressed. What this language does is it requires that the school division provide the copy to that parent two business days before the meeting.

[00:31:52] So to ensure that everyone has advanced information and can review it appropriately. The second item is from House Bill 2182, which requires the Board of Education to amend its regulatory definition of traumatic brain injury. as you can see from this bill, what this will do is it will update the definition for TBI to include an acquired injury to the brain that is caused by a medical condition. For example, stroke, anoxia, infectious disease, aneurysm, brain tumors, and neurological insults resulting from medical or surgical treatments. The current regulatory definition of TBI includes only an acquired brain injury that is caused by an external physical force. So you see the addition there of

[00:32:32] injuries that can happen as a result of a medical condition. And finally, House Bill 2314 requires that the board amend a definition within the regulations related to special education to remove the word component following the word evaluation, thereby ensuring compliance with the relevant federal regulation and current guidance regarding the parent of a child with a disability having the right to an independent educational evaluation at public expense if the parent disagrees with an evaluation obtained by the local education agency and so how you see this happen is it typically an identifying a child for an initial eligibility for special education or

[00:33:10] perhaps for a re-evaluation evaluation and assessments are performed in order to gather the most recent data and at times if a parent disagrees with an evaluation that is conducted by the school they have a right to an independent educational evaluation the school provides monetary support for them to receive an outside evaluation bring that back to the team so they can consider it as part of their deliberations. The Superintendent of Public Instruction recommends that the Board of Education waive first review and approve the exempt action to the regulations governing special education programs for children with disabilities in Virginia.

[00:33:42] Thank you for the presentation. Are there any questions or comments by board members? Dr. Robertson? The draft IEP requirement, I understand why the legislation is there for communications and transparency purposes I'm stuck on what a division draft might be if I'm the director of special ed and I just make my own working notes so don't share them with the IEP

[00:34:20] team because I just want to get my head around everything is that considered a division draft no typically teachers in this case the primary author of a student's individualized education plan is typically their case manager who is a special education teacher and so as a result of obviously observing the student collecting data information updating evaluation assessment information they will then start to input that information into the individualized education program form you all are aware that the majority of school divisions utilize the virginia department of education sponsored iep solution virginia iep which is an electronic tool that allows case

[00:34:56] managers and other members of an iep team to input information directly into the iep in real time so So for example, if I'm a case manager preparing for an IEP meeting happening next week for my student, Sam, I might take some time to update some goals with the data that we've recently performed to

make sure that we're continuing to move the student progressively towards gaining or operationalizing a skill.

[00:35:17] I might also take some time to update the student's present level of performance to encompass any growth that's happened from the last annual IEP meeting, if that's technically as long as it could have been since we convened together again. And so that information is typically input into the draft. so that as the team sits together during the IEP meeting, they can review those sections, add, edit, integrate information from the parent as needed, and then move on.

[00:35:40] So it doesn't really contain working notes so much as a current up-to-date process and progress of the students within the required sections of the IEP. - Thank you. So if I've gone into the system, I've gone to make these comments or those entries, anything that's in the system is then considered a grad, and that's what we'll be sharing in advance.

[00:36:02] - True, so the system's final product, if you will, in this case would be the student's IEP. And so the case manager could easily print a version of that, send it home to the parent in advance, but it wouldn't contain probably a bevy of additional information to support what's provided in that IEP.

[00:36:18] And so that would be part of the deliberations or information that's shared back and forth between the parties prior to meeting. - Mr. Swan, then Dr. Duran. - Thank you so much. So my question is, if an outside agency has a different finding than the school, Is the school obligated to still allow that child to come into the special aid program?

[00:36:42] - So Mr. Swan, that's a great question. So say for example, I am, Sam is a student who's being currently evaluated to determine eligibility for special education and our school's speech language pathologist does an assessment to determine where my skills are and say that that information comes back that I'm functioning developmentally appropriate, there's no educational impact on my skills in the classroom.

[00:37:04] Say that we come back to the table as part of an eligibility meeting and that's the finding. And I as the parent then say, well, I don't really agree with that. I think Sam has a speech issue. And so I seek an independent educational evaluation for an outside speech language pathologist.

[00:37:20] It meets the requirements and goes through the process. That happens, it's reimbursed, it's paid for, they bring it back to the table. The requirement is that the team must consider that information in their evaluation and identification of that student. So no one assessment, evaluation, or piece of information is kind of definitive, but all of that together is considered as a package to consider eligibility for students and the impact on their education.

[00:37:48] You look like you're still thinking. You got something else for me? Yes, I'm just thinking from a teacher's perspective and a parent's perspective, if we agree with the outside agency to advocate for that student, I just feel like something should be in place there too.

[00:38:07] Although it's being considered, sometimes it's really not considered at times, especially if the school division has already tested the child. So I'm just thinking about the advocation for, you know, advocating for the student as well as, you know, if the teacher agrees with the outside agency compared to agreeing with the division.

[00:38:29] Absolutely. And so I think something to consider is that, one, there are also other avenues to support a team in reaching a decision. And if team members feel like there's not consensus around the decision point, there are some tools and resources that they can avail themselves of to ensure that they're getting to a decision that accurately reflects all folks that are involved in that process.

[00:38:47] For example, the department-sponsored facilitated IEP, which enables a third-party outsider to come into the IEP meeting and help to facilitate where there may be some differing opinions and serve as an advocate for that child. And so we offer resources to support where teams might have disagreements just like that.

[00:39:04] You're welcome. Great question. Dr. Hollins, the third component, the third change that you described with the component evaluation, that piece, does that substantially change what's happening in practice? or is that just codifying something that you said has already been done because it's been a recommendation i i'm not clear on that part what substantively is going to happen or is it just in writing yeah so i'll actually divide that question into two components you see from the background material that was provided to you there's been a little bit of back and forth from the u.s department of education on this issue specifically our regulations mirror very closely the federal implementing regulations for the individuals with disabilities education act

[00:39:44] however those have not been reaffirmed lately because there hasn't been a change to that legislative package however in the interim guidance has come out in the form of letters from the office of special education programs that have taken a little bit of a stronger stance on what exactly that piece of the evaluation is so important and so what this language does it actually brings us into balance with that current guidance from the u.s department of education your second question is to the impact that i'll have on local education agencies i think is a a good one because we see a trend that's happening across the commonwealth for the request of

[00:40:20] independent educational evaluations that may not match up with what a team initially decides to evaluate a student on the determination of ie depends on the school division providing information around an evaluation component to a student now what this language would do is it would widen the area of flexibility and autonomy and parents seeking iees maybe in areas that weren't specifically addressed by an iep team so for example my previous example of using a speech language pathologist related assessment perhaps i used a tool that i'm very familiar with but another outside independent educational evaluation would use another tool or component that they

[00:40:56] deemed appropriate to assess the student and so you can see where this language change would widen the flexibility and would possibly have an impact on local school divisions and the resources need to support that change so as a follow-up to that what type of support from your office will be given to leas to understand that and additional resources and it just seems to me what you just described is very clear that for many divisions that might be a major change i agree and our department is poised to update our guidance responsive to this change we've worked hand in hand with our counterparts at the u.s department of education office of special education programs really to help us understand it and so we feel that we have a lot of information

[00:41:35] that we'll share with school divisions not only in updated guidance but we're also scheduling opportunities to meet with directly with special education directors as you can imagine they're kind of the front lines of dealing with these issues throughout the fall and winter thank you dr olson thank you dr

hollins um circling back to the first item on um the timeline so providing the draft at least two business days ahead um i think i heard you say that our practice in the field is to provide that draft ahead of time but now this change

[00:42:12] says that we shall do this. So I'm curious about how we ensure that the change from, you know, may, if that's what the language is, to you will do this, how we make sure that our local school divisions understand this is a requirement, and the rollout of that, because there's sometimes a lag between the action that we take as a board, what the expectation is for implementation and the information then getting to the local divisions, And then the divisions having the opportunity to, you know, ripple that information out or to the schools and leaders in the schools.

[00:42:52] So can you talk a little bit about that timeline? Absolutely. In this case, the timing really is perfect because we're poised, as we are at the typical beginning of every school year, to meet and reaffirm guidance out to local school divisions. However, if you'll also remember from our sharing with you on the department's response to the Joint Legislative Audit Review Commission Study of Special Ed, we're also engaging this year in our first cycle of the five-year comprehensive monitoring protocol. So I think our strategy is really multi-tiered. One, making sure that the resources and guidance that we provide to the field are updated to accurately reflect and explain this change. Because to Dr.

[00:43:27] Roberson's question, some divisions have this as part of their local protocol. Other divisions don't and may leave it up to each individual case manager to manage on a student-by-student basis. And so having that guidance and information updated is incredibly important. The second piece is making sure that we're running through the understanding of this with folks directly.

[00:43:45] And I think our work with special education directors across the state on our monthly technical assistance calls, I like to duplicate Dr. Lane whenever I can. And so we have our own monthly calls with special ed directors. They're well aware that this is in the pipeline. We've also met with special education advocacy organizations across the Commonwealth to ensure that they're able to provide one-on-one targeted assistance to parents and families that have questions.

[00:44:08] And most importantly, we'll be able to check boots on the ground implementation of this change going into effect as part of our monitoring with the 24 school divisions we'll be doing during the 21-22 school year and so that will continuously help to inform to see what the implementation looks like where those bumps in the roads might be and how we can perform guidance and continued education for professionals across the state Dr. Anderson thank you Dr. Hollins this topic is very near and dear to my heart the scenario that you gave about sam who uh was evaluated by reading a speech pathologist and determined

[00:44:44] not to be you know eligible for support uh you could replace sam with my little boy and so i'm going to from the perspective of a parent a couple questions it's multi multi-pronged so in future state if this is imp once it's implemented um what's the obligation on the school to make sure the parent is aware that they have the third party option how do they find that out um is the third-party option that they go obtain within a referred network or preferred network, meaning

[00:45:17] do they have to be within a specific network that the school is willing to entertain, and once they go through that process, what does the reimbursement look like? Is that handled at the school level, at the division level? Just wanted to make sure that the parent is well informed and the process is very clear as far as what steps that they would have to take.

[00:45:40] Dr. Anderson, that's such a wonderful question. I think a great answer for parents and families across the state to hear. So this, the great news about this is that there is, there's no ambiguity. It is clearly defined and regulatory required what this process looks like. And that is defined within the special education procedural safeguards that are required to be handed out to every parent at their, at their annual IEP meeting at any convening of a team. And so oftentimes folks grab those and they just kind of shove them in their folder and move on, but they contain a wealth of very valuable information that directly relates to the advocacy for families and parents and so the provision of an independent educational evaluation and a parent's right to that is detailed within the

[00:46:19] procedural safeguards it also details the qualifications that must be required and so the qualifications of anybody that is seeking an independent educational evaluation have to be commiserate with the qualifications of the school personnel so in our example it would be a licensed school speech and language pathologist who would be performing that evaluation in the school system and the qualification expectation for that independent evaluator would be for them also to be licensed and as you can imagine that's that's very common right you can you can easily access a licensed educational diagnostician school developmental psychologists within the community we're also requiring and many

[00:46:57] of our school divisions have ready-to-go guidance packets on providers within the community that meet those qualifications that is not a one-stop serves all lists it merely provides a starting point for parents to engage in their community to seek folks who may be able to provide the service to them but they can also seek a provider that's not on the list and bring that information back to the school and allow them to vet those qualifications to make sure there's a match there as to the third point of your question as long as all those boxes are checked the school will typically work very rapidly special ed departments you're usually poised to do this and have a protocol set in place for reimbursement structure and so they work off the amounts that information is

[00:47:33] also typically provided in the guidance directly to families. So I would also state we just recently updated at our department a list of free and low-cost legal options and advocacy support resources for families. So we feel like that's also a great opportunity. We have folks call us all the time and ask these questions, but we realize some folks may not feel comfortable calling the Department of Education and asking. So we provide a list of qualified outside providers, both lawyers and non-lawyers, more advocacy organizations that can help parents to kind to try out these questions and figure out the answers that they need for their communities.

[00:48:08] My pleasure, great question, thank you. - Dr. Mann? - Actually, Dr. Anderson asked one of the questions I was interested in, so. - Thank you, great minds think alike. - Are there any other questions or comments from board members?

[00:48:25] I don't see anybody. So, you know, staff has asked that we waive first review and adopt, is there a motion to do so? - So moved. - Thank you, Dr. Robertson, second. Dr. Anderson, all those in favor signify by saying aye.

[00:48:40] - Aye. opposed? Thank you so much, Dr. Harlins. Great. Thank you. And I will finalize my time with you this morning with item G. President Gecker trying to shove me off, but I will not stop yet. You could sit down between the items and then we'll call you up. The last item that I have for you today is first review of exempt action to the regulations governing the operation of private schools for students with

disabilities based on General Assembly action. As we lovingly refer to them, our private school special education regs today.

[00:49:12] I know this topic will be much more quickly retrieved from your memory banks as this is a piece of legislation I know many of you have been very passionate about, particularly since we worked so hard as a group to pass the regulations governing restraint and seclusion in public schools in the Commonwealth of Virginia.

[00:49:27] I am pleased to tell you that due to the hard work of folks like Mr. Hank Milburn behind me and Emily Webb and Jim Chapman who have been so helpful, we have now been able to bring to you a review package to ensure alignment between the private school regulations and regulations governing restraint and seclusion in the public schools of Virginia you'll remember that this is an item that was also shared not only from the general assembly session but also from the joint legislative audit and reviews study of the children's services act that was published in November of 2021 and upon review of the requirements for restraint and seclusion established for public schools as outlined in the regulations you approved it was determined

[00:50:04] that changes needed to be made for the private school regulations to come into alignment with those regulations i do want to point out that this definitely package has a lot of changes because you can imagine just the volume of that initial regulatory document being input into the private school regs and so i urge you to make sure that on page c you refer to that table for a really quick reference guide of where some of those updates and changes were made within the private school regulations the superintendent of public instruction recommends that the board of education wave first review and approve the exempt action to the regulations governing the operation of private schools for students with disabilities great thank you are there any questions or comments here dr

[00:50:43] duran what was the um thank you for that um what was the feedback that you got from either parents or any of the um private school providers was there any feedback on this and provided i think we received really positive feedback from the special education advocacy groups that we worked with as you can imagine they were very heartily invested in the initial public school regulation process. And so this was really seen, I think, as many of you articulated at our previous discussion topic with these regulations, that it was really seen as the next logical step. And so I think that advocacy that stepped up in advance of the General Assembly session and during the 2021 session

[00:51:20] really stated that the community was engaged around this process. And I think something we've also seen is this continuing trend of ensuring and updating accountability when it comes to our licensed private schools that are serving students with disabilities and so I think these are parallel tracks as we work on responding to information to make more transparent the accountability system for students served in public schools we see that kind of mirror track happening for our students in private schools and I think for staff here and I won't speak for Mr. Millward but we're hardly engaged because oftentimes those students have the most significant disabilities and so we want to make sure that we're working hand-in-hand with

[00:51:59] licensed private schools to provide the highest quality education to assure a safe and supportive learning environment for those students. Thank you for that. Ms. Holton. In follow-up, thank you, Dr. Hollins, but in follow-up to Dr. Durand's question, I heard that you consulted with the special education advocates.

[00:52:18] I didn't hear consultation with the independent schools, private school organizations, and And I realized that this action is mostly just implementing clear, direct guidance from the General Assembly that we don't have a lot of discretion over, but obviously there are wording choices, et cetera.

[00:52:39] I'm concerned if we haven't engaged the independent school community, and maybe I missed that. No, you didn't. Thank you so much for reminding me. That didn't do a great job of addressing that previous question. And yes, I'll be frank, the outreach we do for our public schools is mirrored to the outreach we do for our private schools that we license, but we also work with partners like VASEF and like the Virginia Council for Private Education to make sure they're also receiving timely updates on regulatory action. I will note that many of our private schools, particularly those in the greater Richmond area, were very strongly advocating within the General Assembly session and I think did a great job of showing some of the innovative

[00:53:18] practices they have around utilizing behavior supports for students with really significant behavioral disabilities and issues where restraint and seclusion may arise and having some really great programming out there that seeks to maintain the safety of students and staff and so i think this will definitely be a shift as you can imagine these regulations looked very different prior to their updating but we are poised to offer support technical assistance to our private schools and i think what's even better is that they have colleagues out in the field doing this work and doing doing it in a very innovative and safe way and that will be really helpful to that

[00:53:52] community so if i may i'm i'm i'm in my cross-examination mode if you'll forgive me i i hear you that the independent school community was supportive of the legislation and that you will work with them on implementation i haven't heard that you have consulted them on this language implementing the legislation and if not then we can talk about the implications of that but if you have you know have they been consulted since the legislation passed about this regulatory language so somebody just you know i'm not a lawyer i'm a special ed teacher so i'm

[00:54:28] going to play a part here so forgive me um but i think first i think um the majority of of private schools are supportive and i think those that may not so i'm sorry have you talked to have they seen this draft and had a chance to react to this draft so this draft is based only on the legislation that was passed in 2021 and so there has been no color commentary from the department based on what was required so no they haven't been consulted because you don't think there's a need to consult because this is so ministerial just translating exactly what the general assembly told you to do

[00:55:05] they have not been consulted because this change is a result of required legislative action okay then if i may my second question would be we're being asked to waive first review i get that but this is still a proposed reg in the first stage so if there were some huge problem they would still have another opportunity to raise concerns before it comes back for final and most i'm trying so hard to learn my apa process still here i'm a thousand years into it is that correct uh yeah is that a question for ms webb ms holton this is an exempt action um so it

[00:55:42] does not come back to the board again because we are following a directive from the legislature to bring our regulations it into the same thing as what is outlined in code from that mandate okay well then that takes us to the next question is are we satisfied as a board that these changes are purely ministerial that there was no discretion involved that we would want the input of the field on and i will confess to not having analyzed them in that level of detail myself so i'm going to

[00:56:16] have to rely on others here but i hear dr holland's telling us that you don't the staff's position is there you weren't making policy choices as you implemented the language you were just doing exactly word for word what the legislature told you to do i can assure you these red line changes are directly in fact impacting from the legislation that's why we use the table to delineate them so so that it's not only clear to you, but clear to the field as well.

[00:56:41] And that's a requirement for utilizing the exempt action process. - Dr. Wilson. - Yeah. - Actually, my question was very much what Ms. Houlton just got to in terms of engagement with the private school community.

[00:57:03] And I'm processing right now, so I don't have a follow on question. - President Geck. - Yes, ma'am. - Yeah, I guess another way of asking the question Ms. Houlton asked is that these guidelines are true for public schools in the same way that they're now true for private schools.

[00:57:20] And from that vantage point for me, that would be sufficient if that is in fact the case, that there is no variability in what's here when you line it up with what's required of public schools. - Yes, Dr. Mayna, and I appreciate that clarification.

[00:57:38] And just a reminder because the private education world is complex. These regulations apply directly to the private special education schools that are licensed by the Virginia Department of Education. - Yeah, please, Ms. Holton. - One more further follow-up.

[00:57:54] Recognizing that this item was noticed for our agenda today, am I correct? And this question may go to Ms. Webb, if I may. Am I correct that there is nothing in the public comment from the independent school community, the private school community relating to this agenda item?

[00:58:17] - Yes, that is correct. I will also note that even though this is an exempt action, there is a public comment period at the very end once it has gone through a review and is published. That doesn't mean that changes couldn't be made later through a different regulatory process, but we did not receive any public comment through this exempt action because we really just are putting things straightforward with what is in code and what's in our public school restraint and seclusion regulations.

[00:58:47] So I'm comforted by the fact that we hear from Dr. Hollins that the private school community was engaged in and supportive of the legislative effort, and they had notice of this being on our agenda today and have had the opportunity to give us public comment today.

[00:59:03] Having heard nothing, I'm prepared to go forward and follow the staff's recommendation if my colleagues are. - I'll just make one follow-up, Mr. Gecker, if I may. - Sure. - I don't know that Dr. Hollins said private school community was in support what and so i believe there are many that are in support and there may be some that are not in support so i just don't want you to leave thinking that completely but i can say it was debated in the general assembly and decided thank you that's a very important you can't say they're in support you can say that the what's before us meets the

[00:59:39] requirements without editorialization of the legislation that was passed and so whether they they supported the legislation or not, you know, whether they support this depends upon whether they supported the thrust of the legislation, but our options were taken away from us. Is that fair? Yes, Mr. Gecker, this is a direct result of legislative action. Yeah, Ms. Holton.

[01:00:02] If I may, and this is not on this item really, but more generally, this item to me is a great example of these are actions that really best would have been taken by the board rather than by the legislature, but we are so constrained by the impact of the Administrative Process Act requirements that make action here take years when the General Assembly can do it in months. And so I'll just note, to me, this is a great example of if it was within our

[01:00:36] body, we would have an opportunity for a different sort of back and forth. The General Assembly takes our prerogative away and they're right to when we aren't able to move any faster than we are. So maybe we need to engage the General Assembly in helping us fix that process someday.

[01:00:54] Second that. Thank you, Dr. Hollins, for enduring my cross-examination. Thank you. I feel like I've earned a special recognition today. You have. Actually, I've asked Dr. Lane to look something up quickly, so we're going to just make sure that I understand what's going on.

[01:01:14] while he's waiting can you read this in spanish sorry dr duran i'll work on day one of my plan not on 787 okay this is what the provision we're implementing here is i don't know okay you know what we were checking here just to be sure is going back to the source the legislative source and what it

[01:01:49] required and you know it is pretty clear and direct what it requires so all right with that there's been a request to waive first review and adopt as presented. Is there a motion to that effect? So moved, President Geckner. Thank you, Dr. Wilson. Is there a second? Second. Thank you.

[01:02:08] All in favor, signify by saying aye. Aye. Any opposed? Thank you, Dr. Hollins. My pleasure. Do you want to do item H also? No, sir. All right, item H, first review of recommendations for school division of innovation designation good morning good morning everybody president gecker vice president wilson dr lane and members of the board of education within the department

[01:02:45] of learning and innovation we take very seriously the concept of innovation and to support and to magnify it across the commonwealth to find new solutions for all students in virginia the 2017 Virginia General Assembly approved House Bill 1981 which directed the Virginia Board of Education to develop regulations for the designations of schools school divisions of innovation to be eligible for designation a local school board would submit a plan of innovation according to

[01:03:21] board criteria as presented in the regulations the designation defined innovation as a new creative alternative to existing infrastructure to existing instructional or innovative practices or school structures that evidence-based practice suggests will be effective for improving student learning and educational performance a school division of innovation is defined as a school division in which the local school board has developed and for which the board has approved

[01:03:57] a plan of innovation to improve student learning educational performance and college and career and citizenship readiness skills in one or more schools for the benefit of all schools within a school division upon being designated as a school division of innovation not only can that division have a sense of pride they are also asked to share their unique programs and solutions with other school divisions in order that across the commonwealth school divisions can learn within a vast professional learning community. Another perk of being a school division of innovation

[01:04:37] is the ability to request waivers or flexibilities from certain regulatory provisions and permitted to adopt alternative policies for school administrators, teachers and staff to meet the diverse

needs of their students. This year, the Virginia Department of Education received eight submissions for consideration of the school division of innovation designation.

[01:05:04] after a thorough review process five school divisions were identified as best representing the goals of the sdi program while your packets include detailed descriptions of each division here are the highlights of this year's proposed recipients bristol city bristol city implemented bearcat bridge which is a division-wide initiative that supports students as they prepare for life after high school starting in elementary school and going through 12th grade

[01:05:41] the notable outcome of the program being that every graduating senior will have a post high school pathway designation being either college military or workforce assignment next dinwiddie county public schools dinwiddie design designed an innovate an innovative workforce ready diploma seal that provides a model and pathway to ensure students are competitive and can access high quality employment beyond high school in order to acquire the seal students earn points across

[01:06:20] multiple criteria including taking classes in advanced coursework career and technical education participating in career and technical student organization competitions industry certification work-based learning and workspace experience while maintaining high standards in attendance and discipline and an overall high grade point average next fairfax county public schools fairfax's portrait of a graduate strives to support equity in access opportunity and outcomes

[01:06:58] for all students and not just pockets of excellence within the county student performance on end-of-year portraits of graduate presentations of learning require that students are required to curate evidence of learning and growth in portraits of a graduate attributes over time within a learning portfolio.

[01:07:21] Falkia County Public Schools Falkia empowers learners by shifting to a more interdisciplinary learning approach that builds on the traditional project-based learning approach and incorporates a new level of application of learning and concentrates on competency-based learning opportunities that foster creativity collaboration communication critical thinking and citizenship and finally frederick county public schools frederick county have developed and implemented

[01:08:01] a pilot self-determined learning sdl program in one elementary one middle and one high school the ultimate goal is to have students motivated more autonomous and engaged in the learning process within themselves through increased learning opportunities for all participating students in the FCPS portrait of graduate competencies. Included within the SDI are

[01:08:31] requests for flexibilities that may be specific. Stanton City Public Schools who are designated in 2020 Fairfax County Public Schools and Farquhar County Public Schools pending designation today are requesting the flexibility regarding the requirement that students take SOL tests and complete the Virginia Alternative Assessment Program in Virginia Studies, Civics and Economics, and Grade 8 writing as required, such that the local alternative assessments, including

[01:09:08] performance assessments, may be used in lieu of SOL tests and VAP in each of these content areas. a final request for flexibility comes from fairfax county and farquia both pending designation today in the area of locally awarded verified credits credit guidelines approved by the board earlier today which allows schools the option using performance assessments for locally awarded verified credits in history and social science school divisions pursuing this option must

[01:09:45] administer state-developed performance tasks and score the resulting student responses in a state developed rubric. Fairfax and Farquhar are asking for flexibility to pilot state-developed tasks and use student responses in these state-developed tasks as a part of the evidence considered in granting locally awarded verified credits in these courses as a condition of their flexibility.

[01:10:14] Fairfax and Falkia agree to administer a minimum number of state-developed tasks and to submit a minimum number of student samples to the Virginia Department of Education to be used in the development training materials for school divisions and to comply with other requirements as determined by the Department of Education.

[01:10:36] Therefore, the Superintendent of Public Instruction recommends that the Board of Education waive first review and approve the designation of school divisions of innovation to recommended school divisions and secondly the the superintendent of public instruction recommends approval of the requested specific flexibilities for the three school divisions of innovation as indicated in this item at this time does anyone have any questions any questions for the board dr wilson

[01:11:14] Dr. Wolf. Thank you. Dr. Alvin, good to see you. Thank you. I have a question. I'm not clear on Bristol City's request. Yes, ma'am. I understand that post that at the end of the experience, students will have one of three or four designations, three designations. I'm curious what the division intends in terms of parent involvement and student involvement in determining what that pathway for example may be it's unclear to me well how that happened so i guess i'm getting the weeds a little bit to try to understand absolutely weeds are a good word within the

[01:11:51] report you might see some some information in detail about bristol's application and within that the students have demonstrated an in an interest for going to one of those three parts they will be given opportunities to come to public forums where either college personnel or military personnel or industry people will be able to bring them in students parents and to be able to share what are the steps to be able to cross over the line from high school into each of those arenas those are public forums that bristol city has already said that they are doing as well as potentially within

[01:12:28] the classroom themselves having more um experts into the classroom in order to provide more of those learning experiences to the students directly of course yeah and so then um i guess my word observation yes ma'am is that uh sometimes making a designation early yes limits opportunities for students in terms of access to coursework yes and so just thinking about kind of how those steps happen um and i i imagine that bristol has thought through all of that but i just want to acknowledge

[01:13:06] that that is an observation that i will make in terms of you know identifying a pathway as early as whatever it happens to be elementary school etc so i would say that bristol's intent here within virginia we still have graduation requirements that all students need to be able to reach to graduate. These opportunities allow students greater exposure to those possibilities beyond school. And when students do get to the high school where they are selecting what electives they might choose, perhaps those choices would be influenced by some of this exposure. But in terms

[01:13:45] of crossing the line, every student, you know, I only chose to become a teacher at the age of 20 because no 18 year old boy wants to be a teacher and that is quite possible so i do see and i do agree with that the good thing about virginia is that all students regardless of which public school they attend need to still meet the criteria of graduation that would allow them to change their minds later last one and this

one is on frederick yes um so the there's one elementary, one middle, one high in terms of this designation, or the program that is

[01:14:24] set identifies one middle, one elementary, one middle, one high to progress through self-determined learning program. Is the idea that a student would progress through all three of those levels so it's a continuum?

[01:14:41] Yes, ma'am. Okay. Thank you. That's all. Ms. Holton. Thank you, Dr. Albin. This is very exciting. It's really fun to see the divisions taking this opportunity and running with it to do innovative, exciting things for young people.

[01:14:58] And I particularly love seeing that all of these projects in one way or another are consistent with our portrait of a graduate. They're all work-based learning, project-based learning, performative assessments, individualized learning, recognizing student autonomy, and it's just, they're all very exciting, and I look forward to seeing what comes out of it.

[01:15:20] And apropos of the remarks earlier today, I hope we would learn from these changes what we can look at more broadly to help all schools have more room for innovation. In that regard, I see that in addition to approving these five divisions, we're approving, we're being asked to approve several flexibility waiver requests but i also see that if i understood correctly there were requests for flexibility in other areas teacher licensure graduation that we are not being asked to act on

[01:16:00] today and i'm assuming that's because the other requests for for flexibility were ones we couldn't do within existing regs, but I would like to hear at some point, and it doesn't need to be today, it can be by written follow-up, what were the requests for flexibility that we turned down or that we're not able to grant and why?

[01:16:22] And that may help inform our future thinking about... Certainly. So a couple points to your first comment about innovation. The purpose of innovation is almost to pilot the opportunity to try something new. However, the follow-on responsibility is to share that for statewide.

[01:16:40] So we certainly are hoping that all of these will be successful, and we're building, not only relying on school divisions to share with each other that which they have done, but secondly, we are also developing capacity for us to be able to hold mirrors up so that every school division within Virginia can say, "Hey, that was tried in a school division like us.

[01:17:01] Why don't we try that?" Or, "Why should only that school division do that? Let's do that." successful, perhaps it will work for us. So treating these as mini pilots is a very important concept as the innovation has the requirement to pay for it. In terms of waivers, I will share with you, in a sense, we were a little disappointed that we only had eight submissions this year. Taking into context of where everybody is within COVID and coming back to school, you could see how many school divisions might not have been as focused in trying to elevate that which they have done or are doing.

[01:17:38] So I would hope that in a typical year we would have a much broader pool of applicants. With that brings a large, broader pool of requests for waivers. An important piece of requests for waivers is that we cannot allow waivers that contradict the code of Virginia, federal law or state law.

[01:17:58] We can only work within certain things that are board-directed, which is why it comes to you today. Of the school divisions who did submit requests for waivers, these were the only requests for

waivers that we received this year, and interestingly, they were focused on assessment program and I think that they perhaps had a finger on the pulse just to see how performance assessment a lot in social sciences and history, not only are they looking for those, but they're looking to be a part of the process, as you'll see in the second waiver, of saying, hey, not only do we want to do this, but we want to do this well, and we want to pilot a program to share with other

[01:18:38] school divisions. But in order to do that, we need the flexibility of that which you voted for this morning. Ms. Holton, if you don't mind, I just want to add just a little bit. And first of all, I want to say thank you to Dr. Alban and his team and those members at the Department of Education that took time out of their normal jobs to review all these proposals which are so important and to be recognized and i'd also like to recognize uh amy acres from faulkier county vetras huffman from fairfax county and others that we worked with um in order to hone their request for flexibility

[01:19:14] and i i i say that very carefully and the word waiver and flexibility are clearly two different things and what i will tell you is uh last year when dr album wasn't here was the first year of the sdi designations most of the requests that we receive when it comes to flexibilities or even used with the term waiver are things that can already be done however they may not have the divisions may not be aware of certain flexibilities that are offered through the soa

[01:19:47] or through code or or different doors or you know through and so we help them realize those many many times the ones that we have had to say sorry we can't were the ones that are clearly delineated as not eligible and and some of those include licensure based on licensure regs its flexibilities and allowing this teacher to teach this course even though the regs say that they can't or something like that. And so that's where we do have some we've had some sorry we can't

[01:20:22] do that right now based on our current regulations. However, it's all informing the decisions that we're making and the conversations that we're having internally in the Department of Ed. So I just wanted to add that in. Yeah, Ms. Holton. Thank you both. That was a very helpful clarification. If I am correct in understanding, there were some requests for flexibility that were not able to accommodate through any of those methods i would love to have us hear about them to inform our thinking over the longer haul again not now but in a written form or however is easiest

[01:21:01] for you as you say it's informing your ongoing thinking and it can inform ourselves absolutely and we can share those um with you from last year's designations and their request for flexibility and also this year dr man thank you so much for your presentation so how long do these once you're designated as such whatever you're endeavoring to do and the flexibility that you might be granted to do it these things just exist indefinitely or i'm just curious about

[01:21:36] sort of how do we know these things are yielding or getting at the things that divisions are hoping it will help them accomplish. Just curious about that. And this is the first -- you actually just mentioned this is the second group. Yes, ma'am.

[01:21:52] As you answer that, if you don't mind, because one of the questions I had was, do we set the measure of success at the beginning? Which is, I think, piggybacks on what Dr. Mann is asking. And so, how do we know when we've succeeded? And I guess we did, what, 15 of them last year? And, you know, what is the systematic way to collect data so that we know we hit benchmarks to continue it absolutely so if i may answer dr mann's questions first it's the easy one um in short answer if a school division is designated as a school division of innovation

[01:22:27] no they are not a school division of in of innovation in perpetuity it's a three-year period and not only is it a three-year period where um and to get to mr gecker's question as well initially there is a rubric that we use that is based on the legislation itself based on the goals of the legislation, where the school divisions are assessed and they are designated as being a school division of innovation upfront according to that rubric.

[01:22:56] Now annually, after year one, after year two, they have the opportunity, no, not the opportunity, they have the requirement to submit a report to us to show us how is it going and we compare that back to the initial rubric of how are they doing according to the initial filtering rubric are they still being innovative are they still working with the program if they wanted to change what they were doing completely they would have to reapply um to do things differently um for their program at the end of that three-year period they are more than welcome to reapply to be school divisions of innovation again just and i know you're going to ask president you're

[01:23:35] going to answer president gecker's question but you to the you said this is a three-year uh designation yes ma'am um and thinking about the bristol city example which clearly is i think the evolution of something like that will certainly take more than three years if this is a program that's envisioned to move from elementary through high school and just being able to appreciate the um how to get at is it accomplishing what we hope for i just think

[01:24:09] it's an interesting thing to observe and for the board just to think about this is certainly a program that certainly offers a lot of potential but really thinking about it beyond a moment in time uh given some of the goals that they have i'm just i'm i'm curious to want to think a little bit more about that yeah if i might um and to your question and also to mr gecker's question so each year when we receive the annual reports we do look back at their original goals and aspirations and say are you meeting the timeline that was established the annual because they have

[01:24:46] to also provide an annual timeline as to what's getting done when and so we will be monitoring that on an annual basis to make sure that if they're if they are meeting their goals and what they stated in their timeline then they will maintain the school division of innovation for that three years but it can be revoked if we do not see that they are meeting what their intended goals were or their steps along the way and so we will be monitoring that very closely to maintain the integrity of the designation but at the same time we are also learning a great deal

[01:25:25] from the types of avenues that uh each of these school divisions of innovation are are pursuing uh in in in hopes to enrich the education of all kids in virginia just just one more if i might because i think the thing i'm most interested in is like having enough of a runway to accomplish and if you get through the three years and you've managed to make progress in standing up the initiative that you're you're wanting to really um see take flight it may take longer than three

[01:26:00] years, and so would the expectation be they'd have to reapply again to continue in that pathway? At this time, yes. Okay, thank you. And if I could add to that, if they were to reapply with the same program, the question we would ask at that time is, what have you learned, what are you adjusting, and what do you hope to achieve that's different than your original application?

[01:26:22] Because if they're doing something that's the same for six years without any results or without any change, they're not innovating. Let's talk for a minute specifically about Frederick, which is a pretty intriguing concept, right?

[01:26:40] And so certainly we ought to support the goals. How would you measure the goal? And frankly, Mr. Bowling, you mentioned if they're not meeting things, we can terminate it.

[01:26:55] I sort of am viewing this from the other side. If people are doing things that look like they're working in individual pockets, how do we then replicate it elsewhere you know what is the policy implication for the board should we be taking things that are working in you know divisions of innovation and making them statewide as a matter of policy but take frederick as an example um how do you know if you succeeded in you know having kids seem more motivated independent etc how are we going to measure that

[01:27:30] So with Frederick, they are looking to have students have more advocacy in their own learning goals as they're going forward. With that, what would happen is we would take a look at the larger performance. How are students doing in terms of their overall performance? Are they having more middle-of-the-range students find areas that they are being successful in? Because not every student is the same, but if they have advocacy in those things and they are starting to show demonstrable change then that is demonstrating number one that that one shoe size doesn't fit all

[01:28:06] but number two that a program like theirs might be beneficial for more students who typically are not currently reaching higher levels but if they can demonstrate here are students using the traditional formats including students who are on path not to graduate but they have graduated because they found a pathway. Here are students who are able to reach other goals, like go get a CTE certification to get a career where before they might have just walked out after graduation, we didn't know where they were. If they can demonstrate those types of things,

[01:28:41] then a school division like that that is pushing more of an individual advocacy, we would be, and they need to be able to show data that implementing that program using our existing assessments is being beneficial. And I do take the second thing that the waivers is an important piece because that does inform what we do at the department in terms of what is best practice because the smartest we think we might be there are some smart people out in Virginia public schools who could come up with great ideas and if they do that and it works

[01:29:16] it informs us but it also informs the board about what what may very well be best practice for schools in Virginia. So this is an opportunity for us all to grow. Believe me, I get that. I approve of that. I think that, you know, what Frederick presents is an interesting and, you know, on its face, logical way to achieve a good result. What I'm really looking for though is, are we going to follow those individual students and check performance, grade performance, SOL performance? I mean, what measure are you going to use to determine whether having a voice actually and being engaged, all of which, by the way,

[01:29:56] I believe is a good thing and logically connected to the outcomes, but how are we going to collect the data to show, in fact, that it is the result? So in the case of Frederick, for example, they're doing one elementary, one middle, one high, so they are isolating a group of students and they are going to track them.

[01:30:14] Every school division of innovation has its own program, so therefore they will select their own tracking or assessment way, but at the end of it, and annually, they need to be able to demonstrate to us, here are the group of kids, here are how they are improving, measured against their own goals.

[01:30:33] And it's based on, so us looking at each, so their original timeline as proposed, and the actions that were proposed for the innovations based on the three years, we're looking at their annual submissions back to what they proposed.

[01:30:50] to make sure that they're trying that if they're finding that it's not working and they're making adjustments however i also think that that's innovating you know we we innovate uh it's failing forward it's about it's about making you know calculated uh decisions about the future and then trying to see if uh one of those innovations i i implemented at code rva and there were many things that we we didn't do well and we learned from them each time though and it's a very successful program now. I'm not being clear enough in what I'm looking

[01:31:23] for here. I'm going to allow my interpreter to do this. So I believe what I hear you saying is that each individual division in their application sets out what their evaluation tool is going to be.

[01:31:41] Yes. And for Frederick, do you recall exactly what are the evaluation tools they set out in their application? Did they say specifically that they will be tracking these students?

[01:31:58] What exactly did Frederick say they are going to use? Off the top of my head, I'm sorry. We can bring that to you. We can bring that to you. Off the top of my head, I don't recall that one. I'm going to stop speaking and just . But I understand President Gecker's question.

[01:32:17] And while you all will see the results, you've seen the full application, you will see the ongoing reporting, you'll see the results, we will, because you all will see those and we won't necessarily, we will be trusting, I guess, that you are identifying where those promising practices are emerging and that you will be sharing with us.

[01:32:46] OR PERHAPS IT IS THAT THE BOARD WILL WANT TO HAVE A REPORT SPECIFICALLY ABOUT FROM THE BEGINNING. THESE DIVISIONS WERE APPROVED A YEAR AGO. HERE'S WHAT THEY SAID THEY WERE GOING TO BE MEASURING. HERE'S HOW THEY ARE TRACKING WHATEVER THOSE BENCHMARKS HAVE BEEN LAID OUT.

[01:33:03] AND I'M ASSUMING THERE ARE ANNUAL BENCHMARKS THAT DIVISIONS ARE ASKED TO IDENTIFY AS WELL. AND SO HAVING THAT INFORMATION I THINK MAY HELP US UNDERSTAND THE EFFICACY AND THEN BEGIN to process along the way rather than at the end.

[01:33:18] And we can certainly have them come to you all to speak about the program. Just an observation. I'm sorry. President Geffen. I don't need them all to come speak, but it would be helpful for the 15 we did last year, let's say, to have an understanding of when the first year's data comes in, you know, what they are doing, how they are measuring it, what benchmarks we're looking to hit.

[01:33:39] Because frankly, you know, I remember when I first started on the board and talking to Dr. Staples about all the grants we gave to people, but then we didn't follow up on the data or have a database to see what works so that people can either replicate it or what didn't work so that people would know not to do it.

[01:33:57] And here, this is a relatively new program, the SDIs are relatively new. We have an opportunity to take the data in a systematic fashion and use it to inform statewide policy. Because if something works really well, I mean, our goal would be to then, you know, implement that regulatorily or through guidance, you know, across the Commonwealth.

[01:34:20] And so if we could, in the next couple of months, prepare a report on the last 15, you know, what they were looking to do, what the benchmarks were, you know, is it successful or not? And as you said, Mr. Bowling, either way, it's good to know.

[01:34:37] I mean, we don't expect everything we try to succeed, but trying things in a small scale, you know, is a good way for us to be doing business. You know, one of the problems we have as a board is that everything we do has got to be done statewide. And therefore, you've got to be so much more careful about what we're doing, right?

[01:34:57] And rollout's hard and expensive, et cetera. Whereas this provides the opportunity to have laboratories essentially and make policy based upon actually tested things. And so, I don't know, Dr. Lane, is that possible in the next couple of months?

[01:35:14] get a report on where we were and, you know, just to give the board some idea of what we're doing. Absolutely. Thank you. And I know you wanted to say something. I just have a clarification. Sure. I spend time while we review these items, dotting I's and crossing T's in the code and the regs.

[01:35:31] The designation is for five years. Okay. It's in the code and the regs. I think the write-up says three. Yeah. I just want to make sure the board knows it's for five years. Okay. Okay. Thank you. - Thank you, VAC 26, 760-40, sub B, I believe.

[01:35:53] I'm gonna leave it to my lawyer to tell me. Okay, anybody else on the board have any comments about this? Sorry, it was A, not B. All right, Dr. Alvin, I still think of you being down in Appomattox, it's just, it creates issues in my head to have you here instead of there, but is there a desire the part of the board to wave first review and adopt this.

[01:36:26] So moved. Thank you, Dr. Duran. Is there a second? Thank you, Dr. Mann. All in favor signify by saying aye. Aye. Any opposed? Thank you very much. Thank you. Mr. Gecker, I believe that there may need to be two votes, one for the designation and then one for the flexibilities.

[01:36:43] Okay. Unless we can do them all together, I don't know. Here's my lawyer over there. Susan, did we just handle it all together or no? All right. We'll do the separate vote then. Thank you. on the flexibilities, as they're now being called euphemistically.

[01:36:59] - I'll move that secondly as well. - Thank you, Dr. Duran, is there a second? - Second. - Thank you, Mr. Swan, all in favor? - Aye. - Aye. - Any opposed? Thank you. - Very good, thank you.

[01:37:16] - Okay, item I, first review of the advisory board on teacher education and licensure recommendations for guidelines for mentor teacher programs for beginning and experienced teachers. Okay, Dr. Johnson.

[01:37:32] - Yes, good morning. - Good morning. you, President Gecker, members of the board, and Dr. Lane. I am Dr. Joan Johnson. I am the Assistant Superintendent for Teacher Education in Licensure. Today, it is my pleasure to present to you in person for the first review recommendation for revisions to the guidelines for mentor-teacher programs for beginning and experienced teachers. Primarily, I'll refer to them as the guidelines throughout my presentation. I do have a few slides to support me, and I thank the tech support

[01:38:05] for helping me advance those as you are aware the code of virginia requires the board of education to issue guidelines for mentor teacher program the guidelines for beginning and experienced

teachers fulfill the guidance requirement and provide specific aligns with the uniform performance standard slide two the guidelines were first developed in response to the education accountability

[01:38:37] and quality enhancement act of 1999 and were approved by the board on june 20th to 20 20 excuse me 2000 the guidelines have not been revised since the original publication date however since 1985 a variety of programs and documents have been implemented throughout the commonwealth to support beginning and new teachers appendix i included in the documents shared with you all provide a detailed chronological highlight of state level initiatives and guidance that have been

[01:39:16] developed. But today I'll provide some context by sharing a few highlights of those activities. And Dr. Gecker, as you, my glasses too are fogging and I'm going to also try to get those glasses that don't fog up with the mask as well. So please bear with me. So as the slide highlights, The VDOE in 2004 convened a task force on teacher mentor programs at hard-to-staff schools as part of the US DOE teacher quality enhancement grant and as an outcome of that the Virginia requirements

[01:39:53] of quality and effectiveness for beginning teachers and hard-to-staff schools was developed. While not a revision to the 2000 guidelines, this document serves as a supplement to divisions and mentor teacher programs specifically around hard to staff schools second next slide please in 19 2019 the board prescribed new standards of quality soqs for the commonwealth's public schools which included a strong commitment to support educator recruitment retention with an increased

[01:40:27] emphasis on mentoring new teachers and leaders or principals in 2020 the general assembly considered these but did not provide adequate funding these standards highlighted in 2019 include creation of an office within department dedicated specifically to leadership and mentoring as well as separate funding to support full-time mentor positions at the division level in response the vo excuse me the board of education re-prescribed the soq from 2019. in that same year

[01:41:04] the joint legislation audit and review commission jlar delivered a report operations and performance of the virginia department of education recommending or recommended that the board update its guidance on the implementation of effective teacher mentorship program as a result of this guidance my predecessor mrs pitts as well as other staff from the department of teacher education and licensure in collaboration with linda wallinger began the process for review and revision next slide in that process i'll highlight several of the virginia specific related documents that were

[01:41:42] reviewed the codes you can next slide please thank you the codes various guidelines the legislation regulations for school personnel as well as the virginia requirements for quality and effectiveness for beginning and mentor teachers and hard to staff schools next slide please additionally guidelines for uniform performance standards and evaluation criteria for teachers were reviewed virginia standards for professional practice of teachers was reviewed as well as looking outside of our own borders in terms of various states recent guidelines and revisions for mentor

[01:42:20] teachers next slide please additionally best practices were highlighted and reviewed general research on mentor implementation of mentorship programs teacher induction program standards were reviewed from the new teacher center many of us are familiar with that organization nonprofit organization as the nte or from the university of california santa cruz model many of us are familiar with that as well as feedback directly from various organizations in terms of the vea

[01:42:55] virginia education association ascd as well as internally the videoe executive leadership and the office of equity as well as the final review of that draft by abtel in 2021 next slide please the next couple of slides in your presentation board reflects some of you next slide please thank you i'll just focus really on some of the comparisons and the differences between the old as well with the proposed next slide please um this is probably hard to review

[01:43:31] but you the board have various on slides the next couple of slides really highlight the differences between the 2000 mentor teacher guidelines the 2004 specific guidelines that focus on the hard to staff schools and then the outline of the proposed 2021 teacher guidance document next slide please and the next slide shows really a crosswalk between the old and the new and i'll spend some time really unpacking that in the next slide please next slide in terms of really

[01:44:10] unpacking some of the differences between the old and the new you'll see on the slides really it's an emerge of those original documents grounded in both the 2000 guidelines as well as the 2004 requirements for quality effectiveness for beginning teacher mentor programs the reorganization or alignment more closely with not exactly of course the new teacher center's research on on induction program standards.

[01:44:39] Increased emphasis on school leadership engagement versus a management type model. Expanded section on program design. That includes beginning teacher professional learning. Again, you'll note that emphasis throughout. Instructional focus formative assessment for beginning teachers in practice.

[01:44:56] Next slide, please. Increased attention on mentor teacher roles and responsibility selection and assignments. Expanded details related to professional development for mentor teachers as well as for beginning teachers. and increase focus on equitable, culturally inclusive and responsive instruction and interaction.

[01:45:16] Next slide, please. At this point, that concludes my presentation. I would like to offer to you, the superintendents of public instruction recommends that the Board of Education receive for first review ABTEL's recommendation revisions for the guidelines for mentor teacher programs for beginning and experienced teachers.

[01:45:36] And as you're familiar with, the hope is that this item would go forth as a second review in October. upon approval would go posted for the town hall for 30 days of public comment. And at this time, I'll attempt to answer questions and provide steps if necessary.

[01:45:54] - Okay, thank you very much. Are there any questions by board members? Dr. Anderson. - Unless I'm missing something, I would just request to have access to a copy of that presentation. - Yeah, no, I'm not missing out.

[01:46:10] - I've chatted with him, which is an email to all the board members. - Okay, sorry. - No, that's okay. you anybody else if not oh miss holton thank you uh well thank you and welcome uh we're just thrilled to have you and look forward to working with you sure on all kinds of exciting issues yes all kinds so maybe the guidelines are the not the right place to address this but is there anything in here about the workload of mentors i'm i'm really yes they're concerned again how do we know the

[01:46:43] mentors are going to have time to do the job so the many responsibilities were yes excellent question there is some limited language under the section and i don't know if you have that with you make

sure i find this section that talks about the load and the resources just a minute the professional development i thought i saw not more than three but i could have been reading in the

[01:47:20] wrong section but i did see a count of three not working with more than three or four correct it isn't there and i was looking for the section let's see so uh but the the you know the not more than three or four depends on whether that how much that mentor is being relieved of other duties so i would i would hope we give divisions the option to have both full-time mentor programs and part-time mentor and you know there are some modes where somebody might be and and maybe this is the distinction again between a mentor and a coach even but where a school may make somebody

[01:47:57] full-time and then then the caseload would be different but correct but the spirit of and and some of this may depend on whether and if the general assembly enacts our recommendations around our prescriptions around more funding for these roles but correct and so at this time um it is unique to various locales and various divisions uh charged with the allocation of funding there is a limited grant from the state department as you might be aware that supports this at a very ground very low level but some divisions have opted to have full-time mentors

[01:48:32] and there is some guidance and language there regarding having the school division ensure that there's time and that there's support for that but it depends on the locale how how they use their resources to support the program it's on page 18 thank you or 16 i'm sorry um yes number h yes i

[01:48:55] also see a reference on page also see a reference on page 12 um item f i'm sorry g so uh whether or not i would just love to have these provisions be as strong as possible and as clear as possible in reflecting the national standards and expectations but i also recognize the tricky

[01:49:34] dilemma of you know guidelines are not a spending document correct so what do we do pending having the resources sure i do think that's covered as much as i know and items d on page 13 under the program under section 5 mentor roles and responsibilities that section on mentor program matching that whole process the personnel evaluation the assignment class assignments responsibilities etc so there's some additional language there okay thank you i'll take a look at those provisions before we we're not being asked to wait first review on this so and i haven't done

[01:50:11] haven't looked at it as carefully as i should have so thank you all i'll look before next meeting thank you thank you for your presentation um you referenced um in there some of the changes that will happen around cultural responsive and the equity focus uh and i thank the all the staff who worked on that can you just provide some highlights of what are some of the substantive changes that you see that will help our beginning and new teachers focus on all of our students and making sure that we are helping our teachers be prepared for working in a culturally responsive environment sure it's throughout the document obviously but some instances ensure specific

[01:50:50] skills in section six under my glasses as the mentor professional learning components that they are emphasizing how this is linked to the performance the universal performance standards that all educators will be evaluated on first of all and then their specific skills around various skills and knowledge it's on page 14 again under section six section c identify and respond in diverse needs of all beginning teachers engaging in mentoring conversations regarding the community supporting engaging communities and colleagues assisting beginning understanding local context of teaching including components orientations group community next page on 15 understanding

[01:51:30] school culture applying the cultural responsive and anti-bias lens to teaching and learning prioritizing the needs of vulnerable student groups for centering equity in all aspects of planning instructional design and teaching providing strategies for evaluating instructional materials for cultural relevance and inclusivity and providing strategies for class classroom environments that create equitable opportunities for access and achievement for knowledge and providing instruction and classroom strategies that result in culturally inclusive and responsive learning environments are a few that come that i can see quickly thank you so clearly we've

[01:52:07] outlined some expectations and some areas where we want our new teachers to begin to focus differently i think that will be important maybe dr lay if you want to comment on or someone's here from the office of equity and family engagement how then will they support the mentors to get to those outcomes because i think stating what we want to have happen is important we've now put some more language here but the reality of how that's implemented and then the reality of what would that look like for our divisions and our mentors or you know principals leaders anyone who will be utilizing these guidelines and these new recommendations how

[01:52:44] will we help them with not just being aware that this is now there but what they can do skill sets needed professional learning needed to help them we can can certainly continue to provide professional development there but these are guidelines that grow that guide their local programs so ultimately it will be their responsibility to you know develop those requirements thank you and i think that that we have to be mindful there will be many divisions who will need additional support in this because i've heard and i and we've talked quite a bit around the equity work and in the some of the other committees that i've served on that school school divisions want this, they're hungry for this, but they don't know how to, and they need

[01:53:23] help with that. And they're desiring of, you know, one, making sure that it's clear that this is an expectation, but then now that it is one, they don't know where to start in some cases. Other divisions will run with this and they'll fly with it and won't need any help, and they're already doing great work in this area already without us, despite us, right? But there are some who are really hungry for that, and I'm just concerned that we, at the department level, do something to support them and i'll just uh remind you of the legislation that was passed that they required that you put cultural competence in the teacher evaluation what you've done and then the training

[01:53:58] that will be required to be provided by the department thank you for sharing that any other comments or questions do you any so thank you very much the board will take this on first review thank you before we get to discussion of current issues we're going to take a five minute break

[01:54:20] i hope that's acceptable for everybody dr lane you had some comments you wanted to make first

[02:03:24] yes thank you mr gecker um this is the time that we discuss current issues and i'm actually sad because i think the one of the people i wanted to recognize left during the break but we'll actually have an opportunity in the future to recognize this person a little bit more formally but uh two of the really great educational leaders in the commonwealth uh have announced their retirements for later this year and i just wanted to start by thanking them for their service now but i'm sure the board will want to do something more formal next year but one person is in the room and

[02:04:01] that is uh dr ben kaiser who is the uh head of vast right now and that's uh he has announced that he'll be retiring at the end of the year and uh i just want to say a big thank you to ben for all your service to the commonwealth not only at vast but in gloucester when when ben was superintendent in Gloucester. I was in Middlesex, and those are next door to each other, and Ben and I really got to know each other through all of that, and just I consider Ben a mentor and a friend, and just want to congratulate you on your retirement. Like I said, we won't do too many

[02:04:37] celebrations today because you've got a year's worth of work to do. And then the other one, the other one stepped out, but that was Dr. Lori McCullough from BACD has announced she's going to leave at the end of the year as well, and Lori is just a powerhouse in the educational world, and just i said this to her the other day at an event we were in together just one of the best educators i've known so a congrats and well wishes to laurie and they probably would both want me to say if you're interested in their jobs there will be a search uh but congrats to both you congratulations all right update on the timeline for the uh phase three revisions to the teacher evaluation

[02:05:15] guidelines i think emily you're doing this yes okay so i just wanted to provide a very brief update to you all since i know that this is a topic of great interest to the board and we had certainly intended to start the phase three process for the revision to the teacher evaluation guidelines earlier but certainly due to staff turnover and some changes in our licensure and teacher education office we've had to delay that work by a couple of months so just wanted to

[02:05:49] let you know that in october we will be bringing a presentation on teacher evaluation research from george mason university we've been working with them for a couple of months and they have been gracious to let us delay a couple of months while we got dr joan johnson on board but they will be coming during a work session in october we do anticipate bringing additional research and best practices information as needed in november and having a discussion and work session with you all about the components of the system that you want change to inform our rfp process as some of you

[02:06:26] may know the rfp process can take up to a year but we will do everything within our power to speed up this process because we know that this work is important to you we also want to commit to bringing written progress reports to each month in 2022 as we start this phase three process so that's just a very brief update on the timeline we are underway from the staff side now that we have dr johnson on board and you'll be getting more regular updates in the coming months any questions any questions about that no thank you as you noted though it is a very important topic for

[02:07:05] the board we're looking not only to to the evaluation system but look at ways to link that to the professional development system to have a system that's not punitive but one that adds to the effectiveness of our teachers. Second item on the published list is the priorities for the annual report that I'm assuming is you. Yes, this is also me. And one that if we had had a little bit more time yesterday, we had intended to have this discussion and work session, but we certainly already had a full agenda. This is the time of year where I work on your annual report.

[02:07:44] And in reviewing last year's annual report, a lot of the conditions that we focused on last year and concerns we focused on last year remain the same because we still find ourselves in the COVID-19 pandemic. And so I would love your feedback or any kind of topics, priorities that you want addressed so that when I bring this first draft, it'll still be a draft, but want to make sure that I'm covering the topics that

you want me to focus on because this really is your document and how you communicate to the governor and the general assembly and then the broader public at large.

[02:08:19] So I want to make sure I'm capturing those items that are important to you. Any initial comments from the board there? If not, certainly what we've read in the popular press and what we've seen from the data is we have significant fallback in achievement right in the schools, at least the spring SOLs would indicate that. In addition, I take it we have some enrollment challenges in different places. And it seems to me that since this is our report and it focuses on the state of public education or the public schools in the Commonwealth, that we need to be

[02:08:58] very express about where we think we are in terms of educational attainment and then again in terms of enrollment. I think also that some focus on what appears to be, you know, a shift from in-person to virtual and what implications that might have as we go forward.

[02:09:19] You know, we've talked before about, I wouldn't say a lack of guidelines on virtual, but there is very little that we have that we can, in terms of standards and understanding of what makes a teacher effective in the virtual environment as compared to the in-classroom environment.

[02:09:38] I think that area is going to need a lot more study, how we go ahead and review virtual providers. And, you know, I know one point of view is, well, we just use the accreditation system, and if enough people who are in those, you know, taking classes from those providers passed, and that's the same, it's not clear to me that that's not the right answer, but it's not clear to me that it is the right answer. So, you know, unlike last year's report, where we were just beginning, if you will, sort of the pandemic, and we didn't have, you know, any data to show

[02:10:14] the impact, we now have data to show impact. And I think we need to highlight that and talk about what needs to be done. At the same time, as we discussed yesterday, Sam, I think we need to recognize that we hope that, you know, we are, the conditions that we're operating in today are not necessarily, you know, going to be with us forever, you know, and that we have really two issues, two problems. One is how to get out of the hole, and then the second that we're in, And the second then is, you know, how do we improve the system in normal operational times?

[02:10:54] And, you know, I know that's a lot to think about covering, but I think we can do that. And I think it's important for where we're going. And it dovetails with the discussion on the SOQs yesterday, which really I think will end up being sort of assuming a normal operational model.

[02:11:11] And then what else we're going to need to do to, you know, fill the hole that's been dug by the pandemic in terms, not just academic performance, but the social impact and the other impacts we've seen on the children that, you know, we educate.

[02:11:28] I did not mean to, you know, usurp this conversation or preempt it, but welcome any other thoughts. That was not speaking for the board. That was my opinion of what we ought to be doing, but look forward to the boards.

[02:11:44] So the only thing, actually, you mentioned one of the items that I was thinking of, Ms. Webb, the current condition is not necessarily where we will be, and so striking a balance of acknowledging where we are, but being aspirant for future, I think will be an appropriate stance and tone and posture to take, and would want to see that somehow reflected. But I agree with

[02:12:20] President Gecker that we do have real challenges and we should not be light in how we present that information. Mr. Swan. We're well aware of the learning loss. As a teacher, sometimes it can be discouraging to constantly hear learning loss, learning loss, learning loss. So we can also focus on, like they said, where we are in education and move the students and focus on the growth of

[02:12:55] students some students have um thrived in the virtual realm compared to being in class because of you know the way that they learn so if we can just focus on where students are and move them forward because we we certainly realize that we cannot make up two years of um academic progress within a year roverson just generally stated i hope that our priorities uh will in the short term

[02:13:31] and always for the long term place a premium on supporting the leadership development needs at whatever level leaders may find themselves in our school communities we know many of us do from 40 years ago when the effective schools research was rolled out that it all begins with the leader and i think as a board we we should always recognize that the degree to which we are supporting the development of leaders will will be a direct correlation will provide a direct

[02:14:10] correlation to the outcomes that we're anticipating so i hope we will never lose sight of that dr davis fought i'd like to add on to what mr swan was saying as well as supporting our teachers i would like for us to go to get away from a deficit-based thinking here and support our teachers and give them some workplace development and support in ways that we recognize where they are mentally, where they are with the challenges that they are being faced, and how we can help

[02:14:46] them with that. So I'd like to see us move away from deficit-based thinking. Ms. Halton. So reading the public comment for today's meeting, I was struck by just the overwhelming passion we're hearing from the extremes and i you know i don't know whether how much the extremes reflect the the silent majority so to speak but but one thing they do tell us and and it was on all kinds of topics but most immediately in august and september of this year not surprisingly there

[02:15:25] were a lot of passionate voices about masks pro masks and anti-masks and pro vaccine and anti-vaccine and what i took away from that is just a sense of how impossible our school board colleagues jobs have been for the last 18 months and superintendents as well but particularly i'm thinking the school boards have just taken so much incoming and for understandable reasons i'm not faulting those who feel passionate and are raising their voices well i maybe fault them for raising

[02:16:04] their voices too loud i'm happy they're sharing their their feedback but it has been loud and and beyond civil in many uh communities and i don't think we need to jump into i wouldn't want us to jump into the fray in an unhelpful way in this report but some recognition of what a tough year this has been for everybody certainly educators but absolutely particularly for school board members

[02:16:39] and just a sense of inviting grace and patience for everybody particularly with our school leadership and really keep keep bringing more things to me but what i'm really hearing is we need to talk about just the reality of the situation where we are um you know the the challenges everyone has been facing but then the realization that we have had learning loss and that's not to put it on the teachers or the principals or you know superintendents or school board members but that's what the data shows so that's kind of a quick summary of what i'm hearing

[02:17:15] so far and to follow up on that the notion of the access that was not there for many of our students whether it was literal access to technology or access to just having an environment for some

maybe our families didn't speak english not understanding what the lessons were that were happening so really an awareness of the axis and the divide that's occurred i mean i think it just put a shine a light on what was already there for many of our families who prior to remote learning or distance learning they didn't have a lot of the technology at home either and that was a

[02:17:51] disadvantage to them when our other students had the ability to go home and learn and do their homework in a different way this then was you know times 10 when now that was the only type of learning so i would love to see some recognition and some but but along the lines of dr davis vod and mr swan but how do we put that in a not in a deficit model but also just saying here's a reality here's something we need to focus on technology access number one and number two not numbers but one area and then the second thing is really around again our english learner families and we saw that there are ones who didn't engage quite a bit for a variety of reasons,

[02:18:30] and we need to find strategies to help better support them. Dr. Mann and Dr. Anderson. So as I was listening to some of the comments about the importance of how we are supporting educators, it just took my mind back to the discussion we had in work session yesterday and the opportunity we may have to build a bridge if we are going to be aspirational and future-focused and we think about some of the priorities that we have, that perhaps there's an opportunity to use wherever we land with that as a connection point to the SOQs and the importance of continuing to reinforce those things that we believe are fundamentally important

[02:19:10] to helping to ensure the needs of children are being centered and the educators that are supporting them are being centered and the priorities that are important as we think about long term and what's necessary beyond just contending with the reality of today.

[02:19:29] Dr. Anderson? In the vein of having that balance between current state and future state, I'm certain that we would address in the report the significant progress that's been made with early childhood education, but I just really think that the report should amplify and celebrate the why is so important in the in the potential trajectory that puts our our children on having that opportunity to engage with them in a much more structured intentional way earlier um you know

[02:20:05] there's a lot of work that went into that effort a lot of time money and so i was i'm certain we're going to have that in there but just really not missing the opportunity to celebrate uh what that means for the commonwealth i think that's going to be important anybody else mr swan um just speaking with teachers across the commonwealth one of the biggest things is is our mental it's our mental health and we know that we have school counselors that are there mostly for the children but if we

[02:20:44] can have a professional counselor on hand within a division or within a school it would it would definitely help teachers with their mental especially right now time like that yeah i certainly think the mental health of both students and teachers you know the need for for more social emotional support and wraparound services is something we can highlight okay does that give us a starting point in mind yes it does good i mean i think one of the things we'll try to do

[02:21:20] which we have not done in the past is have this document dovetail with the soqs and you know not in an advocacy way but meeting the you know constitutional requirement of the the annual report, but I think this board believes that the SOQs dovetail into the needs that we ought to be, you know, listing in the annual report.

[02:21:43] And are we thinking, going back to yesterday's discussion, do we want to, and I know we don't have priorities yet, but are there any that we want to highlight or should I go ahead and focus on the entirety of the SOQ or anticipated SOQ prescriptions rather than a prioritization list?

[02:22:04] Honestly, I think that as we lay out the conditions, some of the SOQ prescriptions will just naturally seem more important than others. As you talk about building up teachers, the SOQ prescriptions regarding mentorship programs, reallocation, will clearly dovetail well into that in a way, frankly, that the workforce coordinators, which are important in terms of profile of a graduate and other statutory goals, may not fit into the sort of deficits that we see.

[02:22:44] and I'll stop using deficits, as you know. I will start being positive about it. Those things we can improve. All right. So I would not prioritize as such in the report, but I think the report will, by its nature, highlight certain things that are necessary or more necessary to fix.

[02:23:11] Anybody else? Dr. Lane, I know you've had comments. Not on that topic. That's obviously the board's document. We appreciate all the feedback, and we'll start preparing it. I just wanted to share one last note with the board and that is, I was gonna share it anyways and I saw that while I've been sitting here in the last five minutes, the governor issued a press release on this, but many of our school divisions opened for full in-person learning in August, many opened the day or two after Labor Day.

[02:23:42] But we had one last school division that hadn't opened and they opened this past Monday. So we can officially say that every school division in the Commonwealth is now open for full in-person instruction for those families that have chosen it. and just wanted to congratulate our school divisions on a great reopening.

[02:24:00] Obviously, they're dealing with a lot still with quarantines and everything else, but I know, at least speaking from my own children's experience, that they're super excited to be back in school. So congratulations to all of our divisions. - Great, thank you. And Dr. Robertson, I know you wanted to make a plug.

[02:24:19] - Quickly, I think we provided to all board members, I believe yesterday morning, link to a virtual summit which is going to be occurring on november 9th from 9 to noon and since we have a number of folks here in the room too i thought it would be a good opportunity to to plug the leading for equity summit that may play well for the aspiring special education leaders too um the uh the summit is sponsored by the university of virginia school of education

[02:24:54] the university of virginia k-12 advisory council uh the commonwealth of virginia doe and our friend ben with vass is one of the planners along with laurie mccullough at vascd the program is free that makes it even greater but we're also pleased to to feature on the agenda Dr. Lane and Dr. Bob Pianta, the Dean of the School of Education at UVA. Dr. Atkins, Rosa Atkins, is going to be one of the speakers, too, on supporting culturally competent educators.

[02:25:32] Rashard Wright, who is Chief of Staff of Newport News Public Schools, will speak on creating inclusive school cultures for students. We have a team of folks from the Bristol-Radford area. Dr. Keith Perjan, Matt Furt, and Dr. Brad Vizzilli will speak on how the leaders elevate the equity agenda in historically underfunded regions. And Dr. Eddie, David Eddie Spicer and Dr. Kinkani White from UVA will speak on accomplishing meaningful equity through continuous improvement.

[02:26:09] And from Albemarle County, Dr. Bernard Harrison and Jasmine Fernandez will talk about their anti-racism policy which they have in place uh the uh the uh person who will probably attract a great deal of attention is karen chenewitt uh president gecker has given all board members a reading assignment this is her latest book districts that succeed breaking the correlation between race poverty and achievement she is going to speak twice that morning and she's with the ed trust

[02:26:45] education trust so we have a very impressive lineup and i wanted to take this opportunity to not only encourage all board members to the extent your schedule will allow you to participate in this virtually and along with everybody else who who would find this useful to your own journey i think it's going to be a great opportunity thank you thank you dr davis fox may i do a shout out sir sure i would be remiss if i did not do a shout out for all of the school nurses across the state who helped our schools come back and and mitigate the quarantines and and the student needs so thank

[02:27:22] you to all of our school nurses our school health and nutrition department through the nutrition department and i'd also like to say i'm dr lane and to laurie mccullough and the latest recipients of the impact award winners congratulations that's a very impressive group so congratulations anybody else if not miraculously before noon the board is adjourned

Coraggio Consulting · aguyonx.com